

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504963	RODRIGUEZ vs FERGUSON CAPITAL GROUP, INC.	MOTION FOR PROTECTIVE ORDER

Tentative Ruling:

DENY

CCP § 2017.030 permits the court to issue a protective order if: (1) the discovery “is unreasonably cumulative or duplicative, or obtainable from some other source that is more convenient, less burdensome, or less expensive”; or (2) the discovery “is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation.”

Here, Plaintiff has filed a declaration of necessity stating why Plaintiff needs to propound in excess of 35 Special Interrogatories in this wrongful termination case. On a motion for protective order challenging a declaration of necessity, the propounding party has the burden of justifying the excess number of requests. The court finds that Plaintiff has met his burden by identifying and explaining the core issues in the case. With the excess requests justified, the burden now shifts to the Ferguson Defendants to show that the undue burden of discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence. (*Emerson Elec. Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) The Ferguson Defendants, however, fail to provide a specific factual showing of the quantum of work required to respond to Plaintiff's SROGs in support of their argument of undue burden. (*West Pico Furniture Co. v. Superior Court* (1961) 56 Cal.2d 407, 417.) The Ferguson Defendants' remaining arguments are not persuasive.

Motion is Denied.

No Sanctions.